

[24 & 25 GEO. 5.] *Ministry of Health* [Ch. lxxv.]
Provisional Order Confirmation (Wey Valley Water)
Act, 1934.



CHAPTER lxxv.

An Act to confirm a Provisional Order of the Minister of Health relating to the Wey Valley Water Company. A.D. 1934.
[25th July 1934.]

WHEREAS under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 the Minister of Health has made a provisional order which needs confirmation by Parliament: 33 & 34 Vict. c. 70. 36 & 37 Vict. c. 89.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Wey Valley Water) Act 1934. Short title.

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SCHEDULE.

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Order.*

WEY VALLEY WATER.

Provisional order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Wey Valley Water Company to raise additional capital and for other purposes.

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This order may be cited as the Wey Valley Water Order 1934.

(2) The Wey Valley Water Acts and Orders 1898 to 1928 and this order may be cited together as the Wey Valley Water Acts and Orders 1898 to 1934.

Commence-
ment of
order.

2. This order shall come into operation on the date of the Act of Parliament confirming it.

Incorpora-
tion of
Acts.

3.—(1) The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this order) are hereby incorporated with this order (namely) :—

(a) The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) as amended by the Companies Clauses Consolidation Act 1888;

(b) Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

(2) For the purpose of such incorporation the expression “special Act” where used in the said Acts shall be construed to mean this order and the term “Company” shall mean the Undertakers.

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4.—(1) In this order unless the context otherwise requires the several words terms and expressions to which by any Act wholly or partly incorporated with this order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings.

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Interpre-
tation.

(2) In this order unless the context otherwise requires—

“employee” means any workman servant or officer of the Undertakers other than a director;

“the Act of 1928” means the Wey Valley Water Act 1928;

“the commencement of this order” means the date upon which this order comes into operation;

“the directors” means the directors of the Undertakers;

“the existing Acts and Orders” means the Wey Valley Water Acts and Orders 1898 to 1928;

“the limits of supply” means the limits within which the Undertakers are from time to time authorised to supply water;

“the Minister” means the Minister of Health;

“the Undertakers” means the Wey Valley Water Company;

“the undertaking” means the undertaking of the Undertakers as from time to time authorised.

PART II.

FINANCIAL PROVISIONS.

5. In addition to the capital already authorised to be raised by the Undertakers they may from time to time raise additional capital not exceeding in the whole eighty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively :

Power to
Undertakers
to raise
additional
capital.

Provided that the Undertakers shall not under the powers of this order—

(a) issue any shares or stock of less nominal value than ten pounds; or

(b) create and issue any greater nominal amount of capital than shall after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue thereof be sufficient to produce the said sum of eighty thousand pounds :

Provided also that section 38 (New shares or stock to be sold by auction or tender) of the Act of 1928 shall be applicable to the additional share capital authorised by this order.

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New stock
to be subject
to same
incidents as
existing
shares or
stock.

6. Except as by this order provided the additional capital created by the Undertakers under this order and the new shares or stock in that capital and the holders thereof shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if such additional capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital :

Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any such new shares or stock to which a preferential dividend shall be assigned.

Limit of
dividend on
additional
capital.

7. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital authorised by this order than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may subject to the provisions of this order be issued as ordinary capital except so far as a larger dividend may at any time be necessary to make up the deficiency of any previous dividend in respect of the additional capital which shall have fallen short of the said seven pounds per centum per annum or than such dividend (not exceeding six pounds) in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as preference capital.

Power to
borrow.

8.—(1) In addition to any other sums which they are authorised by the existing Acts and Orders to borrow the Undertakers may subject to the provisions of this order borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-half of the amount of the additional capital which at the time of borrowing has been raised under the powers of this order.

(2) No sum shall be borrowed in respect of any capital so raised until the Undertakers have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the capital in respect of which such sum is borrowed together with the premiums (if any) realised on the sale thereof has been fully paid up.

Limit of
interest on
money
borrowed.

9. The Undertakers shall not without the consent of the Minister pay interest at a higher rate than five pounds per centum per annum in respect of any moneys borrowed on mortgage or any debenture stock issued under the authority of this order.

Debenture
stock.

10. The Undertakers may create and issue debenture stock subject to the provisions of section 29 (Power to create debenture stock) of the Wey Valley Frimley and Farnham Water Act 1898..

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11. The principal moneys secured by all mortgages granted by the Undertakers before the commencement of this order and subsisting at the commencement thereof shall during the continuance of such mortgages and subject to the provisions of the Act or Order under which such mortgages were respectively granted have priority over the principal moneys secured by all mortgages granted by virtue of this order.

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 Priority of existing mortgages.

12. All moneys raised or to be raised by the Undertakers on mortgage or by debenture stock under the provisions of the existing Acts and Orders and this order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this order :

Priority of mortgages over other debts.

Provided that nothing in this section shall affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of the undertaking and works of the Undertakers or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

13. Section 44 of the Act of 1928 (Appointment of receiver) shall extend to mortgagees of the Undertakers in respect of mortgages granted under this order.

Appointment of receiver.

14.—(1) In this section unless the context otherwise requires—

Redeemable preference shares or stock and debenture stock.

“stock” means and includes preference shares or stock and debenture stock ;

“issue” includes re-issue ;

“redeemable stock” means any stock issued under the powers of this section so as to be redeemable ;

“redeemed stock” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this order and without further or other sanction issue so as to be redeemable any stock created by the Undertakers after the commencement of this order and any redeemed stock :

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Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of the Undertakers passed at an extraordinary meeting convened for the purpose.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Undertakers may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit :

Provided that—

- (a) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the Undertakers are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued; and
- (b) during such interval as aforesaid the amount raised by means of any preference shares or stock so created or issued shall not be deemed to be paid-up share capital for the purposes of any enactment regulating the borrowing powers of the Undertakers.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock of which the grant or issue by the Undertakers was lawful in the circumstances existing at the date of such grant or issue.

(5) Redeemable stock shall bear such rate of dividend or interest (not exceeding any maximum rate prescribed in respect of the particular class of stock) and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine :

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Undertakers of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

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(6) The Undertakers shall not redeem out of revenue any redeemable stock but any discount allowed on the issue or any premium payable on the redemption thereof may be written off out of revenue. A.D. 1934.
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(7) Any preference shares or stock issued solely in substitution for redeemable stock shall not be subject to the provisions of section 38 (New shares or stock to be sold by auction or tender) of the Act of 1928.

15. All moneys raised under this order or under any other Order or any Act relating to the Undertakers including premiums shall be applied only to purposes of the undertaking to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock shall not be considered as part of the capital of the Undertakers entitled to dividend : Application of moneys.

Provided that in any case where a power to raise money by borrowing or to create a reserve or other fund is made proportionate to the paid-up or nominal capital the premium received from the sale of shares or stock shall for such purpose be reckoned as part of the paid-up or nominal capital.

16. Notwithstanding anything in the Waterworks Clauses Act 1847 or any other Act or Order relating to the Undertakers it shall not be lawful for the Undertakers during any year or half-year in which they charge for a supply of water for domestic purposes rates and charges exceeding by more than fifteen per centum the rates and charges authorised by section 54 (Rates at which water is to be supplied for domestic purposes) of the Wey Valley Frimley and Farnham Water Act 1898 as amended by this order to apply any of their funds or profits to the making up of the deficiency of any dividends payable in respect of any previous year or half-year For the purposes of this section no regard shall be had to the extra charges for water-closets and baths authorised by the said section 54 of the said Act of 1898. As to back dividends

17.—(1) The aggregate amount which may be carried by the Undertakers in any year to any reserved fund formed in pursuance of section 76 of the Waterworks Clauses Act 1847 and to any contingency fund formed under section 122 of the Companies Clauses Consolidation Act 1845 shall together not exceed a sum equal to one per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking. As to reserved and contingency funds.

(2) The aggregate amount standing to the credit of any such reserved fund and contingency fund of the Undertakers as aforesaid shall together not at any time exceed a sum equal to

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| <p>A.D. 1934.</p> <p style="text-align: center;">—</p> <p><i>Wey Valley</i>
<i>Water</i>
<i>Order.</i></p> <p>Limitation
on carry
forward.</p> | <p>ten per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking.</p> <p>18. It shall not be lawful for the Undertakers to carry forward at the end of any year to the credit of the profit and loss (net revenue) account any sum exceeding the total of the following amounts (that is to say) :—</p> <ul style="list-style-type: none"> (a) The amount required by the Undertakers for paying any dividend or interest which the Undertakers are entitled or required to pay but have not paid in respect of that year; (b) An amount equal to the total sum which the Undertakers would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year; and (c) An amount equal to the total sum which the Undertakers will be required to pay during the next following year as interest on any mortgages debentures or debenture stock. <p>19. The Undertakers may apply to any purposes of this order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the existing Acts and Orders.</p> |
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PART III.

ADMINISTRATIVE PROVISIONS.

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| <p>Undertakers
not bound to
regard
trusts.</p> | <p>20. The Undertakers shall not be bound to see to the execution of any trust whether express implied or constructive to which any shares or stock or debenture stock of the Undertakers may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any shares or stock or debenture stock of the Undertakers as if such shares or stock or debenture stock were shares to which that section applies.</p> |
| <p>Notices of
meetings.</p> | <p>21. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Undertakers (whether ordinary or extraordinary) may (if the directors so determine) be given by a prepaid letter sent by ordinary letter post to each holder of shares or stock instead of by public advertisement :</p> <p>Provided that—</p> <ul style="list-style-type: none"> (a) the letters giving the notice shall be directed according to the registered address or other known address of each holder of shares or stock and posted not later than seven clear days before the date of the meeting ; |

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(b) in proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time hereby prescribed.

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22. Notwithstanding anything in section 10 of the Companies Clauses Consolidation Act 1845 the Undertakers may substitute for the shareholders' address book provided under that section a card or other index (of a type to be approved by the auditors of the Undertakers) containing the names and addresses of the several shareholders of the Undertakers and that section in its application to the Undertakers shall be read and have effect accordingly.

Substitution
 of card index
 for share-
 holders'
 address
 book.

23.—(1) It shall be lawful for the Undertakers at any time by resolution passed at a general meeting to decide that the accounts of the Undertakers shall be audited by a single auditor or by a firm of accountants and notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary for such auditor or the members of such firm to hold any share or stock in the capital of the Undertakers.

Auditors.

(2) No person not being a retiring auditor of the Undertakers shall be eligible to be elected at any general meeting as auditor of the Undertakers unless notice be given to the secretary or left at the principal office of the Undertakers seven days at least before the date of the meeting that such person will be proposed for election as an auditor of the Undertakers. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor and during such seven days and the day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(3) If any auditor of the Undertakers dies or resigns the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

24.—(1) The Undertakers may establish and carry into effect and from time to time modify alter or rescind a scheme or schemes for the provision of superannuation allowances for employees and may by any such scheme provide for the making of contributions by the Undertakers and by the employees to the superannuation fund formed under any such scheme and for the investment of moneys for the time being forming part of any such fund and the accumulation of interest or dividends on such investments by way of compound interest :

Super-
 annuation
 scheme.

Provided that no such modification alteration or rescission of any such scheme shall place any employee who at the date of such modification alteration or rescission is entitled under such

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A.D. 1934. scheme to a superannuation allowance in a worse position than
 — he would have been if such modification alteration or rescission
Wey Valley had not been made.
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(2) Any superannuation fund formed under any scheme established by the Undertakers under the powers of this section shall not come into operation until it has been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

PART IV.

SUPPLY OF WATER.

Revision of
water rates
and charges.

25.—(1) At any time after the expiration of five years from the commencement of this order the Undertakers or any local authority having jurisdiction within the limits of supply or the council of any county in which any part of the limits of supply is situate may apply to the Minister for a revision of the rates and charges for the supply of water authorised by the Wey Valley Water Acts and Orders 1898 to 1934 or for the time being in force under any order of the Minister made in pursuance of this section and if and whenever any such application is so made and the Minister is satisfied that the cost of labour and materials or other circumstances affecting the undertaking have substantially altered he may by order (subject to the provisions of subsection (5) hereof) vary either by way of increase or decrease such rates and charges or any of them and may fix the date on which the rates and charges as so varied shall come into force :

Provided that in the absence of exceptional circumstances the Minister shall not vary any of the said rates and charges at less intervals than five years.

(2) The making of any new valuation list under the Rating and Valuation Act 1925 or any Act amending that Act shall be deemed to be a circumstance affecting the undertaking within the meaning and for the purpose of this section.

(3) By any order made under this section the Minister may alter the basis of any of such rates and charges as aforesaid and the ratio of any particular rates and charges to any other or others of them and may (inter alia) if he thinks fit revoke any charges for baths or any other special charges relating to the supply of water for domestic purposes and authorise a rate or rates throughout the limits of supply for a supply of water for domestic purposes without extra charges.

(4) Notwithstanding anything contained in subsection (1) of this section if the Undertakers and all the local authorities having jurisdiction within the limits of supply so agree an order may be made under this section at any time after the commencement of this order.

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(5) The rates and charges prescribed by any order made under this section shall be of such respective amounts as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking and making good depreciation and providing for any reasonable contribution which the Undertakers may carry to any contingency or reserved fund of the undertaking formed under the provisions of this or any other order or Act them so enabling and paying all other costs charges and expenses (if any) properly chargeable to the revenue of the undertaking) a reasonable return on the share capital of the Undertakers due regard being had to any capital which may be reasonably expected to be expended by the Undertakers on the undertaking during the five years immediately following the date of such order.

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(6) Upon the making of any order under the provisions of this section the Water Undertakings (Modification of Charges) Act 1921 shall cease to apply to the undertaking.

26. Section 8 (Guarantees by district councils) of the Wey Valley Water Order 1918 shall be read and have effect as if the following had been added at the end of that section :—

Guarantees
 by district
 councils.

“ Provided that subject to the provisions of the Local Government Act 1933 any expenditure incurred by a rural district council in pursuance of this section shall be defrayed as special expenses on the contributory places in respect of which the guarantee or contract is entered into.

(3) Nothing in this section shall be deemed to authorise any such urban or rural district council to use any water supplied by the Undertakers under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other authority supplying water under Parliamentary authority without the consent of such other authority.”

27. Where a person who takes a supply of water for domestic purposes from the Undertakers otherwise than by measure desires to use for or in connection with a refrigerating apparatus or for or in connection with any apparatus (other than apparatus used for softening water for domestic supplies which does not require water for cleaning cooling regenerating or for motive power or similar purposes) depending while in use upon a supply of continuously running water any of the water so supplied the Undertakers may if they think fit require that all water so used shall—

Charges for
 supplies for
 refrigerating
 apparatus
 &c.

- (a) be taken by measure and paid for at the prescribed rates for a supply by measure and in that event the minimum quarterly charge for the water shall be ten shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the Undertakers:

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A.D. 1934. , Provided that this section shall not apply to and no additional charge shall be made for any water supplied for or in connection with any apparatus used for softening water if one such apparatus only is used and the water softened thereby is drawn off at one point only and is used solely for purposes for which the domestic rate is paid.

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Order.

Price of
supply by
measure.

28. The price to be charged by the Undertakers for a supply of water by measure shall not exceed two shillings and sixpence per thousand gallons :

Provided that the Undertakers shall not be required to afford any supply of water by measure for a less sum (exclusive of meter rent) than fifteen shillings per quarter except as provided by the preceding section of this order.

Amendment
of section 54
of Act of
1898.

29. Notwithstanding anything in section 54 (Rates at which water is to be supplied for domestic purposes) of the Wey Valley Frimley and Farnham Water Act 1898 as modified by the Wey Valley Water Company (Modification of Charges) Order 1923 as from the first day of January 1935—

(a) the Undertakers shall not be entitled to make any additional charge for a supply of water to the second watercloset nor to the first bath in any premises to which that section applies ;

(b) section 2 of the Wey Valley Water Company (Modification of Charges) Order 1923 shall for the purposes of its application to premises in which no fixed bath is provided and the rateable value of which does not exceed twenty pounds be read and have effect as if twenty per centum were substituted for fifty per centum.

Special
terms for
supplies to
caravans &c.

30.—(1) Notwithstanding anything in the existing Acts and Orders or this order a person shall not be entitled to demand or continue to receive from the Undertakers a supply of water to any caravan shack hut tent or other like structure unless he has—

(a) agreed with the Undertakers to take a supply of water by measure and to pay to the Undertakers such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him ; and

(b) unless he has secured to the reasonable satisfaction of the Undertakers by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

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(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by whom the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties.

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(3) Notwithstanding anything in this section or any other provisions of the existing Acts and Orders or this order the Undertakers shall not (unless so authorised by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which such caravan shack hut tent or other like structure is situated objects to the supply being given.

31. Section 22 (Period of error in defective meter) of the Act of 1928 shall be read and have effect as if the words "in the case of a surcharge" were inserted therein before the words "shall be recoverable."

Amendment
of section 22
of Act of
1928.

32.—(1) In addition to the powers conferred by section 62 (Regulations for preventing waste of water) of the Wey Valley Frimley and Farnham Water Act 1898 the Undertakers may make regulations as to the testing and stamping of taps cocks ferrules valves flushing cisterns flushing apparatus and other similar fittings and apparatus and prescribing the charge for such testing and stamping.

Extension of
powers for
preventing
waste &c.
of water.

All such regulations shall be subject to the provisions contained in subsections (2) (3) (4) (5) (6) (7) and (10) of section 250 and in sections 251 and 252 of the Local Government Act 1933 and those sections shall for the purposes of this section be construed as if the Undertakers were a local authority within the meaning of those sections and the secretary of the undertakers were the clerk of the local authority The confirming authority for the purposes of the said section 250 shall be the Minister.

(2) Nothing in subsection (1) of this section or in any regulations made thereunder shall apply to any pipes or fittings used on any premises which form part of the railway of a railway company so long as such fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the Undertakers.

(3) Any person who shall forge or counterfeit any stamp or mark used by the Undertakers or by the authority of the Undertakers for any of the purposes of this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

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 Opening of
 ground by
 person liable
 to maintain
 pipes &c.

33.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act or Order relating to the Undertakers to maintain or repair any pipe or apparatus used for the supply of water from the works of the Undertakers the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Undertakers by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street may subject to the like conditions execute such works on behalf of such owner or occupier and except so far as such agreement otherwise provides any reasonable expenses incurred by the Undertakers shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

PART V.

SUPPLEMENTAL.

For protec-
 tion of War
 Department

34. Nothing in this order contained authorises the Undertakers—

- (1) to take enter upon use or interfere with any land soil or water or any right in respect thereof for the time being vested in or in the occupation of or exercised or exerciseable by His Majesty's Principal Secretary of State for the War Department (in this section referred to as "the Secretary of State") or in of or by any other person body or corporation acting for or on behalf of the Secretary of State without his consent signified in writing under his hand which consent he is authorised to give subject to such special or other conditions as he shall see fit to impose upon the Undertakers; or
- (2) to take away lessen prejudice or alter any rights privileges or powers vested in or exercised or exerciseable by the Secretary of State without such consent as aforesaid.

Repeal.

35. The enactments mentioned in the schedule to this order are hereby repealed to the extent shown in the second column of that schedule.

Costs of
 order.

36. All costs charges and expenses of and incidental to the application for this order and the preparation making and confirmation of this order shall be paid by the Undertakers and may in whole or in part be defrayed out of revenue.

[24 & 25 GEO. 5.] *Ministry of Health* [Ch. lxxv.]
Provisional Order Confirmation (Wey Valley Water)
Act, 1934.

SCHEDULE.

A.D. 1934.

*Wey Valley
Water
Order.*

1.	2.	3.
Act or Order.	Extent of repeal.	Subject-matter of repealed provisions.
Wey Valley Water Order 1905 as confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1905 (5 Edw. 7 c. cxvii).	Section 18 -	Incorporation of provisions of Act of 1898 as to offering new capital by auction or tender.
Wey Valley Water Order 1913 as confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1913 (3 & 4 Geo. 5 c. cxxvi).	Section 50 -	Auditors.
Wey Valley Water Act 1928 (18 & 19 Geo. 5 c. xl).	Section 17 (3)	Charges for supplies for refrigerating apparatus.

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